

The National Waterway (Talcher-Dhamra Stretch Of Rivers, Geonkhali-Charbatia Stretch Of East Coast Canal, Charbatia-Dhamra Stretch Of Matai River And Mahanadi Delta Rivers) Act, 2008

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Union of India - Act

The National Waterway (Talcher-Dhamra Stretch Of Rivers, Geonkhali-Charbatia Stretch Of East Coast Canal, Charbatia-Dhamra Stretch Of Matai River And Mahanadi Delta Rivers) Act, 2008

UNION OF INDIA

India

The National Waterway (Talcher-Dhamra Stretch Of Rivers, Geonkhali-Charbatia Stretch Of East Coast Canal, Charbatia-Dhamra Stretch Of Matai River And Mahanadi Delta Rivers) Act, 2008

Act 23 of 2008

Published on 17 November 2008

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The National Waterway (Talcher-Dhamra Stretch Of Rivers, Geonkhali-Charbatia Stretch Of East Coast Canal, Charbatia-Dhamra Stretch Of Matai River And Mahanadi Delta Rivers) Act, 2008

NO. 23 OF 2008

1115.

[17th November, 2008]

An Act to provide for the declaration of the Talcher-Dhamra stretch of Brahmani-Kharsua-Dhamra rivers, Geonkhali-Charbatia stretch of East Coast Canal, Charbatia-Dhamra stretch of Matai river and Mahanadi delta rivers between Mangalgadi and Paradip in the States of West Bengal and Orissa to be a national waterway and also to provide for the regulation and development of the said stretch of the rivers and the canals for the purposes of shipping and navigation on the said waterway and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Fifty-ninth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the National Waterway (Talcher-Dhamra Stretch of Rivers, Geonkhali-Charbatia Stretch of East Coast Canal, Charbatia-Dhamra Stretch of Matai River and Mahanadi Delta Rivers) Act, 2008.

(2)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

Declaration of certain stretches of rivers and canals as National Waterway.

- The Talcher-Dhamra stretch of Brahmani-Kharsua-Dhamra rivers, Geonkhali-Charbatia stretch of East Coast Canal, Charbatia-Dhamra stretch of Matai river and Mahanadi delta rivers between Mangalgadi and Paradip, the limits of which are specified in the Schedule, is hereby declared to be a

3.

Declaration as to expediency of control by the Union of certain stretches of rivers and canals for certain purposes.

-It is hereby declared that it is expedient in the public interest that the Union should take under its control the regulation and development of Talcher-Dhamra stretch of Brahmani-Kharsua-Dhamra rivers, Geonkhali-Charbatia stretch of East Coast Canal, Charbatia-Dhamra stretch of Matai river and Mahanadi delta rivers between Mangalgadi and Paradip for the purposes of shipping and navigation on the national waterway to the extent provided in the Inland Waterways Authority of India Act, 1985.

THE SCHEDULE

(See section 2)

Limits Of The National Waterway (Talcher-Dhamra Stretch Of Brahmani-Kharsua-Dhamra Rivers, Geonkhali-Charbatia Stretch Of East Coast Canal, Charbatia Dhamra Stretch Of Matai River And Mahanadi Delta Rivers)

East Coast Canal and Matai river

(Consisting of old Hijli tidal canal, Orissa coast canal and Matai river)

Northern limit

Confluence point of Hooghly river and Hijli tidal canal at

Geonkhali at Lat 22012' 20" N, Lon 88003' 07" E.

Southern limit

Confluence of Matai river and Dhamra river near Dhamra Fishing harbour at Lat 20047' 42" N, Lon 86053' 03" E.

Brahmani-Kharsua-Dhamra river system

(Consisting of Brahmani-Kharsua-Dhamra rivers)

North-Western limit

Samal barrage across river Brahmani, Talcher at Lat 21004' 26" N, Lon 85008' 05" E.

South-Eastern limit

An imaginary line drawn across Dhamra river at East Point of

Kalibhanj Dian Reserved Forest near Chandnipal at Lat 20046' 26" N, Lon 86057' 15" E.

Mahanadi delta rivers

(Consisting of Hansua river, Nuna nala, Gobri nala, Kharnasi river and Mahanadi river) (Alternate route-Hansua river enters into Bay of Bengal through northern point of False point bay, then enters river Kharnasi at southern end of False point bay, river Atharabanko, a northernly distributory of river Mahanadi)

Northern limit

Confluence of Kharsua river with Brahmani river at
Ramchandrapur at Lat 20°36' 55" N, Lon 86°45' 05" E.

Southern limit

An imaginary line in continuation to the Northern break water
structure across the entrance channel at Paradip Port at Lat 20°15' 38" N, Lon 86°40' 55" E.

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